

TENTATIVE RULINGS

Kevin Sage

v.

Pebble Beach Company, et al.

24CV005115

[Motion for Summary Judgment/Adjudication of Pebble Beach Co., a Limited Partnership](#)

[Motion for Summary Judgment/Adjudication of Pebble Beach Co., a General Partnership](#)

Hearing Date: July 17, 2026

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Motion for Summary Judgment/Adjudication of Pebble Beach Co., a Limited Partnership

The unopposed motion by Defendant Pebble Beach Company, a Limited Partnership (“PBC LP”), for summary judgment [Code Civ. Proc. § 437c, subds. (c), (p)(2)] and its request for judicial notice of the Complaint and Answer in this case [Evid. Code § 452, subd. (d)] are **GRANTED**.

Plaintiff Kevin Sage (“Plaintiff”) claims that a pothole on Lisbon Lane in Pebble Beach caused his bicycle crash and injuries. [PBC LP’s Separate Statement of Undisputed Facts (“Defense Fact(s)”) 1-2.] PBC LP has met its initial burden by submitting admissible and uncontested evidence showing it does not own, maintain, manage, occupy, lease, or control any roadway in Pebble Beach. [Defense Fact 4.] The burden then shifts to Plaintiff to present triable factual issues. [Code Civ. Proc. § 437c, subd. (p)(2).] Because Plaintiff did not oppose the motion, he has not met his summary-judgment burden. [*Ibid.*] Consequently, the motion is **GRANTED**.

PBC LP shall prepare the Proposed Order consistent with this Tentative Ruling.

Motion for Summary Judgment/Adjudication of Pebble Beach Co., a General Partnership

The motion by Defendant Pebble Beach Company, a General Partnership (“PBC GP”), for summary judgment or, alternatively, summary adjudication is **CONTINUED** to **September 18, 2026**, at 8:30 a.m. in Department 14 to allow the parties to file supplemental papers.

Plaintiff Kevin Sage (“Plaintiff”) objected to PBC GP’s “reply-only expansion of their summary-judgment motion and to their improper reply-stage filings” and asked the Court to “disregard the reply-only arguments, authorities, objections, and procedural material.” [Plaintiff’s Objection at 1.] Instead of ruling on the objections, the Court, at its discretion, will allow Plaintiff to file a supplemental opposition addressing PBC GP’s reply. The Court will also permit PBC GP to file a supplemental reply.

Therefore, PBC GP’s motion is **CONTINUED** to **September 18, 2026**, at 8:30 a.m. in Department 14. Plaintiff’s supplemental opposition and PBC GP’s supplemental reply are due according to Code of Civil Procedure section 437c, subdivision (b).

PBC GP shall prepare the Proposed Order consistent with this Tentative Ruling.